

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF MEZAK AND OTHERS v. RUSSIA

(Applications nos. 20948/13 and 16 others –
see appended list)

JUDGMENT

STRASBOURG

14 December 2023

This judgment is final but it may be subject to editorial revision.



In the case of Mezak and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 23 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained principally of the unlawful detention (deprivation of liberty). They relied, expressly or in substance, on Article 5 § 1 of the Convention.

8. The Court reiterates that the expressions "lawful" and "in accordance with a procedure prescribed by law" in Article 5 § 1 essentially refer back to national law and state the obligation to conform to the substantive and procedural rules thereof. It is in the first place for the national authorities, notably the courts, to interpret and apply domestic law. However, since under Article 5 § 1 failure to comply with domestic law entails a breach of the Convention, it follows that the Court can and should exercise a certain power to review whether this law has been complied with (see, among numerous other authorities, *Benham v. the United Kingdom*, 10 June 1996, §§ 40-41 *in fine*, *Reports of Judgments and Decisions* 1996-III).

9. In the leading cases of *Fortalnov and Others v. Russia,* nos. 7077/06 and 12 others, 26 June 2018, *Rozhkov v. Russia (no. 2),* no. 38898/04, §§ 91-96, 31 January 2017, *Butkevich v. Russia,* no. 5865/07, § 67, 13 February 2018, *Kuptsov and Kuptsova v. Russia,* no. 6110/03, § 81, 3 March 2011, and *Tsvetkova and Others v. Russia,* nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018, the Court has already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the applicants' detention was contrary to domestic law requirements and the "lawfulness" guarantee of Article 5 of the Convention (see the appended table).

11. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see, among other numerous authorities, *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning absence of a

prosecuting party from the administrative proceedings, *Frumkin v. Russia*, no. 74568/12, 5 January 2016, as regards disproportionate measures taken by the authorities against organisers and participants of public assemblies; *Tsvetkova and Others*, cited above, §§ 179-91, and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, concerning the lack of a suspensive effect of an appeal against the sentence of an administrative detention; *Dirdizov v. Russia*, no. 41461/10, §§ 108-11, 27 November 2012, concerning excessive length of pre-trial detention; *Korneyeva v. Russia,* no. 72051/17, §§ 62-65, 8 October 2019, concerning the right not to be tried and punished twice for the same offence; *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 402-78, 7 February 2017, concerning the restrictions on location or time of public events; and *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 74-90, 30 April 2019, related to conviction for an administrative offence for calling on the public to participate in an unauthorised public event).

13. In view of the above findings, the Court considers that there is no need to deal separately with the remaining applicants' complaints under Article 6 of the Convention concerning the fairness of the proceedings and the alleged restrictions on the right to examine witnesses.

V. REMAINING COMPLAINTS

14. Ms Yegorchatova (application no. 20554/21) and Mr Lazarev (application no. 28750/22) also raised complaints under Article 5 § 5 of the Convention.

15. The Court has examined these complaints and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], nos. 1253/04 and 2 others, § 96, 11 December 2014), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the unlawful detention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible and the remainder of applications nos. 20554/21 and 28750/22 inadmissible;

4. *Holds* that these applications disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see the appended table);

6. *Holds* that there is no need to deal separately with the remaining complaints of the applicants under Article 6 of the Convention concerning the fairness of the proceedings and the alleged restrictions on the right to examine witnesses;

7. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 December 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Peeter Roosma President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	20948/13 19/08/2012	**Ernest Aleksandrovich MEZAK** 1976		11/12/2011 1.10 a.m.	11/12/2011 6.25 p.m. final decision on the matter was taken by the Supreme Court of the Komi Republic on 02/08/2012	Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Protest against Duma Elections Results, Syktyvkar, Teatralnaya Square, 10/12/2011, Article 20.2 § 2 and Article 19.3 § 1 of CAO, fines of RUB 5,000 and RUB 1,000 respectively, Syktyvkar Town Court of 16/07/2012 and 20/02/2012, respectively.	4,000
2.	4877/18 18/12/2017	**Artem Gennadyevich MYACHIN** 1988		12/06/2017	13/06/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings - Final decisions taken by the St Petersburg City Court on 20/06/2017 and 25/07/2017, 10 day's administrative detention and fine of RUB 16,000, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - punishment for non-compliance with police orders in the context of the same public event on 12/06/2017 in St Petersburg, Marsovo pole: article 19.3 § 1 of CAO, article 20.2 § 5 of CAO – final decisions by	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
							the St Petersburg City Court on 20/06/2017 and 25/07/2017, respectively	
3.	11400/19 15/02/2019	**Ivan Yuryevich ZHDANOV** 1988		24/05/2018, 2.20 p.m. 27/07/2019, 11.30 a.m.	25/05/2018 no exact time 27/07/2019 no exact time	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - for all sets of administrative proceedings; relevant final decisions: 06/09/2018, Moscow City Court; 12/04/2019, Moscow City Court; 06/08/2019, Moscow City Court. Penalty: fines of RUB 20,000 and RUB 250,000, administrative detention of 10 days, Art. 10 (1) - conviction for making calls to participate in public events - (1) Conviction under Article 20.2 § 2 of the CAO for calls to participate in unauthorised manifestation on 05/05/2018 published on social network / fine of RUB 20,000, final decision by the Moscow City Court, on 06/09/2018. (2) Conviction under Article 20.2 § 8 of the CAO for calls to participate in unauthorised manifestation on 09/09/2018 published on social network, fine of RUB 250,000/ final decision by the Moscow City Court, on 12/04/2019; (3) Conviction under Article 20.2 § 2 of the CAO for calls to participate in unauthorised manifestation for fair election to Mosgorduma on 27/07/2019 published in social network Facebook,	7,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
							administrative detention of 10 days, final decision by the Moscow City Court, on 06/08/2019, Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Moscow, 15/12/2017, proposal to change the location, notification procedure, Moscow Government, 03/12/2017, administrative proceedings, final decision by the Supreme Court of the Russian Federation, on 18/10/2018	
4.	11741/19 25/02/2019	**Nikita Sergeyevich BOGOMAZOV** 1985	Kostyushev Vladimir Yuryevich Moscow	03/09/2018, 12.30 p.m.	04/09/2018, 7.50 p.m.	Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018), Detention without a court order beyond the 48-hour time-limit (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, § 82, 26 June 2018)	Art. 5 (3) - excessive length of pre-trial detention - 03/09/2018 to 03/07/2019, Verkh-Isetsky District Court of Ekaterinburg, Sverdlovsk Regional Court; Defects: fragility of the reasons employed by the courts, use of assumptions, in the absence of any evidentiary basis, of the risks of absconding or obstructing justice, failure to assess the applicant's personal situation reducing the risks of re-offending, colluding or absconding; failure to examine the possibility of applying other measures of restraint	5,000
5.	38668/19 26/06/2019	**Aleksey Igorevich LETUNOV** 1994	Belov Daniil Yuryevich St Petersburg	10/09/2018, 2 a.m.	11/09/2018, 9.35 a.m. (The complaint about unlawful detention was raised on appeal in the administrative	Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, § 35, 8 October 2019), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others		3,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					offence proceedings: final decision taken by the St Petersburg City Court on 14/02/2019)	v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)		
6.	57906/19 22/10/2019	**Nikita Vadimovich KUCHINSKIY** 2000	Pomazuyev Aleksandr Yevgenyevich Vilnius	09/09/2018, 4 p.m.	09/09/2018, 9.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision was taken by the Moscow City Court on 20/05/2019, administrative fine of RUB 10,000	4,000
7.	20554/21 05/04/2021	**Lyubov Fedorovna YEGORCHATOVA** 1956		25/12/2018	10/01/2019	Detention without a court order beyond the 48-hour time-limit (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, § 82, 26 June 2018). The courts acknowledged that the applicant's detention was unlawful and awarded her RUB 35,000 (approximately EUR 390) for 17 days of unlawful detention, final decision taken by the Supreme Court of Russia on 08/12/2020.		2,600
8.	30348/21 11/05/2021	**Alena Olegovna KULYUKINA** 1995	Zboroshenko Nikolay Sergeyevich	02/02/2021	03/02/2021	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
			Mytishchi			offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	on the matter was taken by the Moscow City Court on 09/02/2021, 5 days' administrative detention	
9.	47456/21 04/09/2021	**Artem Aleksandrovich KRAUZOV** 1992	Zboroshenko Nikolay Sergeyevich Mytishchi	31/01/20221	31/01/2021	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - 03/06/2021 Moscow City Court; administrative fine of RUB 15,000	4,000
10.	49494/21 01/10/2021	**Vadim Nikolayevich SEMENOV** 1982	Zhdanov Ivan Yuryevich Vilnius	23/01/2021, 2.10 p.m.	23/01/2021, 9 p.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Applicant taken to the police station as an administrative suspect: no evidence/assessment that	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision taken by the Tula Regional Court on 06/04/2021, administrative fine of RUB 10,000	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)		
11.	52617/21 29/09/2021	**Natalya Aleksandrovna ARAPOVA** 1976		31/01/2021	01/02/2021	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision taken by the Moscow City Court on 30/03/2021, administrative fine of RUB 10,000	4,000
12.	56109/21 23/10/2021	**Olga Vyacheslavovna MARCHENKO** 1986	Zboroshenko Nikolay Sergeyevich Mytishchi	23/01/2021	23/01/2021	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision taken by the Moscow City Court on 19/05/2021.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
13.	56370/21 15/11/2021	**Sergey Nikolayevich KOLESNIKOV** 1980	Zhdanov Ivan Yuryevich Vilnius	31/01/2021	31/01/2021	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - administrative fine of RUB 15,000; final decision on 19/05/2021 by the Stavropol Regional Court	4,000
14.	56374/21 15/11/2021	**Valentin Alekseyevich BOLDYSHEV** 1956	Zhdanov Ivan Yuryevich Vilnius	31/01/2021, 11.55 a.m.	31/01/2021, 4.45 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final – on 19/05/2021 by the Pskov Regional Court; administrative fine of RUB 12,000	4,000
15.	57424/21 26/11/2021	**Murodzhon Anvarovich GAPAROV** 1992	Laptev Aleksey Nikolayevich Moscow	20/10/2021	26/11/2021	Delay of more than a few hours in releasing the applicant (see Butkevich v. Russia, no. 5865/07, § 67, 13 February 2018), Authorities' failure to specify the period of pre-trial detention (see	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Lack of a prosecuting party at oral court hearings at trial and appeal on 21/10/2021 and 17/11/2021	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Logvinenko v. Russia, no. 44511/04, §§ 35-39, 17 June 2010)		
16.	28750/22 24/05/2022	**Dmitriy Vasilyevich LAZAREV** 1973		09/04/2016, 5.30 a.m.	11/04/2016, 11 a.m. (The applicant's claim for compensation for unlawful detention was granted in part. He was awarded RUB 30,000 (approximately EUR 400). The final decision on the matter was taken by the Supreme Court of the Russian Federation on 24/03/2022).	Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018) , Detention without a court order beyond the 48-hour time-limit (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, § 82, 26 June 2018)		2,600
17.	46372/22 12/09/2022	**Dzhon Pavlovich YEMELYANOV** 2000		07/05/2022, 8.00 p.m.	08/05/2022, 5.36 p.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64,	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - 10 days' administrative detention, Moscow City Court, 13/05/2022, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started serving his	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017)	sentence – administrative arrest – before the appeal judgment was delivered	

[1] Plus any tax that may be chargeable to the applicants.